

24VECV00778 24VECV00778

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Case Number: 24VECV00778 Hearing Date: June 29, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

CHASE CAMERON GARDELLA,

Plaintiff,

vs.

JACK DOHERTY, LLC; BANGER OFFICIAL, LLC; KONGG, INC.; JACK DOHERTY, an individual; JUSTIN GOSLEE a/k/a "KANE KONGG," an individual; 1401 SOUTHWEST 5th COURT, LLC; JOSEPH "MARK" DOHERTY; OFFICIAL BUDS, LLC; 6495 HWY 13, LLC; 222 RICHLANDS, LLC; 2 JOANN DR LLC; 139 LAKEWOOD, LLC; JACK DOHERTY PROPERTIES, LLC; S&P WORLDWIDE FUNDING CO., LLC; CHEAPER PEEPERS OF NEW HYDE PARK, INC.; LONG ISLAND HOME & PROPERTY; SURFACENCY 3D ANMTN & RNDRNG; LI HOME & PROPERTY MAINTENANCE CORP.; KI & JD, LLC; BANGER CORP.; and DOES 16 through 50, inclusive,

Defendants.

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CASE NO.: 24VECV00778

ORDER GRANTING PLAINTIFF'S MOTION FOR ORDER PERMITTING PRETRIAL DISCOVERY OF DEFENDANTS' FINANCIAL CONDITION PURSUANT TO CIVIL CODE § 3295

I. BACKGROUND

This is a personal injury action. Plaintiff Chase Cameron Gardella ("Plaintiff") alleges on October 28, 2023, he attended a Halloween Party at 3703 Alomar Drive, Sherman Oaks, CA (the "Premises"). At approximately 12:30 a.m. on the morning of October 29, 2023, Plaintiff was on the street outside of the Premises and talking to Defendants Jack Doherty ("Doherty") and Justin Goslee a/k/a "Kane Kongg" ("Goslee"), when Goslee and Doherty gestured that they were going to fight Plaintiff and Plaintiff's friend. Doherty live streamed Goslee violently punching Plaintiff in the face without consent, sending him falling to the ground and causing serious physical injuries to his head, face, and neck.

Plaintiff now moves for an order permitting pretrial discovery of Defendants' financial condition pursuant to Civil Code § 3295.

II. PROCEDURAL HISTORY

On February 21, 2024, Plaintiff filed his Complaint, alleging (1) Assault; (2) Battery; (3) Negligence; (4) Negligent Hiring/Retention/Supervision/Training; (5) Aiding and Abetting; and (6) Intentional Infliction of Emotional Distress.

On April 2, 2025, Plaintiff filed the operative First Amended Complaint ("FAC"), alleging (1) Assault; (2) Battery; (3) Negligence; (4) Negligent Hiring/Retention/Supervision/Training; (5) Aiding and Abetting; (6) Intentional Infliction of Emotional Distress; (7) Appropriation of Name of Likeness; and (8) Unjust Enrichment against Doherty, Jack Doherty LLC, and Banger Official LLC (collectively, the "Doherty Defendants").

On May 6, 2025, Doherty Defendants filed their Answer to the FAC.

On January 16, 2026, Plaintiff filed Amendments to Complaint (Fictitious/Incorrect Name), substituting the following parties for Does 1 through 14, respectively:

- 1) 1401 Southwest 5th Court, LLC;
- 2) Joseph "Mark" Doherty;
- 3) Official Buds, LLC;
- 4) 6495 Hwy 13, LLC;
- 5) 222 Richlands, LLC;
- 6) 2 Joann Dr, LLC;
- 7) 139 Lakewood, LLC;
- 8) Jack Doherty Properties, LLC;
- 9) S&P Worldwide Funding Co., LLC;
- 10) Cheaper Peepers of New Hyde Park, Inc.;
- 11) Long Island Home & Property;
- 12) Surfacency 3D ANMTN & RND RNG;
- 13) LI Home & Property Maintenance Corp.; and
- 14) KI & JD, LLC;

On April 9, 2026, the Court denied Doherty Defendants' Motion for Summary Judgment.

On May 18, 2026, Plaintiff filed an Amendment to Complaint (Fictitious/Incorrect Name), substituting BANGER CORP. for DOE 15.[1]

On May 29, 2026, Plaintiff filed the instant Motion for an Order Permitting Pretrial Discovery of Defendants' Financial Condition Pursuant to Civil Code § 3295.

On June 15, 2026, Doherty Defendants filed an Opposition.

On June 22, 2026, Plaintiff filed a Reply.

III. LEGAL STANDARD

Civil Code § 3295, subdivision (c) provides:

No pretrial discovery by the plaintiff shall be permitted with respect to the evidence [of defendant's financial condition] unless the court enters an order permitting such discovery pursuant to this subdivision. . . . Upon motion by the plaintiff supported by appropriate affidavits and after a hearing, if the court deems a hearing to be necessary, the court may at any time enter an order permitting the discovery otherwise prohibited by this subdivision if the court finds, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to § 3294 [punitive damages].

(Civ. Code § 3295(c).)

To be entitled to an award of punitive damages, a plaintiff must prove, by clear and convincing evidence, that the defendant was guilty of oppression, fraud, or malice. (See Civ. Code § 3294 (a).) Civil Code § 3294 (c) defines malice, oppression, and fraud as follows:

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

"The term 'despicable' is not defined in the statute, but the Supreme Court has observed that it is applicable to 'circumstances that are 'base,' 'vile,' or 'contemptible.'" (Wilson v. Southern Cal. Edison Co. (2015) 234 Cal.App.4th 123, 164.)

"[B]efore a court may enter an order permitting discovery of a defendant's financial condition, it must (1) weigh the evidence submitted in favor of and in opposition to motion for discovery, and (2) make a finding that it is very likely the plaintiff will prevail on his claim for punitive damages." Jabro v. Superior Court (2002) 95 Cal.App.4th 754, 758. Under Civil Code § 3295, "the words 'substantial probability' [are interpreted] to mean 'very likely' or 'a strong likelihood' just as their plain meaning suggests." Ibid.

IV. ANALYSIS

A. Parties' Respective Arguments

Plaintiff moves for an order permitting pretrial discovery of Defendants' financial condition pursuant to Civil Code § 3295(c), asserting a substantial probability of prevailing on his claim for punitive damages. Plaintiff advances several arguments in support of its contention Doherty acted with malice, defined under Civil Code § 3294 as conduct carried on with a willful and conscious disregard of the rights or safety of others. First, Plaintiff relies on a video montage of his content and statements to contend Defendant's business model incentivizes confrontation, escalation, and dangerous conduct to maximize

engagement, viewership, and revenue, while treating the resulting risk of litigation as a cost of doing business. (See Mot. at 3:19-24.) Second, Plaintiff points to the declaration of McKinley Richardson, who states Doherty watched a video showing Kongg punching a woman and rendering her unconscious while working as DaBaby's bodyguard before the incident at issue. (See id. at 4:6-9.) Plaintiff argues this evidence gives rise to the inference Doherty knew of Kongg's violent history and intentionally hired him because of his propensity for such conduct. (See id. at 4:11-14.) Third, Plaintiff asserts Doherty encouraged confrontation throughout the livestream by asking viewers who he should "press" and making statements to Kongg suggesting someone should be punched, including "sock him in the face and then we run." (See id. at 4:18-25, 5:1-2.) Plaintiff contends that, when a confrontation later arose with Plaintiff, Doherty's statements that "we're gonna fight" and "alright go, I'm running" served as a cue for Kongg to carry out the conduct Doherty had been encouraging. (See id. at 5:7-15.) Finally, Plaintiff maintains Doherty capitalized on the incident by encouraging viewers to follow him on Kick while leaving the scene, reposting the footage on other platforms, testifying the footage performed "very well" and went viral, stating, "we stand on it," and sending Kongg \$5,000 that same day. (See id. at 5:21-28.) Plaintiff argues this conduct demonstrates Doherty ratified the assault and supports punitive damages against both Doherty and various entity defendants under Civil Code § 3294(b). (See id. at 11:11-17.)

Based on the foregoing, Plaintiff argues the evidence demonstrates a substantial probability of prevailing on his punitive damages claim. Accordingly, Plaintiff requests various financial documents from January 1, 2016, to present, contending any legitimate privacy concerns can be addressed through a protective order limiting the use of the financial information to this litigation. (See id. at 13:3-7, 13:21-26, 14:1-12.)

Doherty Defendants oppose the motion, arguing that Plaintiff has failed to establish a substantial probability of prevailing on the punitive damages claim. First, Doherty Defendants contend Plaintiff's argument relies on an unauthenticated video montage assembled by counsel from clips spanning several years, which constitutes inadmissible hearsay and lacks foundation. (See Opp. at 7:19-28.) Doherty Defendants further assert Doherty's statement describing litigation as a "business expense" referred to eviction proceedings rather than personal injury litigation and Doherty testified lawsuits are not a business expense. (See id. at 8:3-10.) Second, Doherty Defendants argue Plaintiff's contention that Doherty hired Kongg for his propensity for violence is based solely on the declaration of McKinley Richardson, Doherty's former girlfriend, whom Doherty Defendants characterize as a self-interested witness offering speculative opinions regarding Doherty's intent and state of mind rather than admissible evidence of malice. (See id. at 9:1-5.) Doherty Defendants further maintain Doherty testified he did not view the video depicting Kongg's prior altercation until after the incident, did not direct or encourage the use of force, and contracted with Kongg on the condition he act professionally and lawfully. (See id. at 6:2-4, 6:12-14, 9:17-21.) Third, Doherty Defendants contend Plaintiff's characterization of Doherty as encouraging violence is based on isolated statements taken out of context from hours of livestream footage presented through the same unauthenticated montage. (See id. at 6:6-8.) Fourth, Doherty Defendants argue the video evidence demonstrates Doherty was joking when he made the statements Plaintiff characterizes as incitement, noting that he immediately stated, "I'm running, no I'm kidding," suggested the groups separate, and made efforts to deescalate the encounter by telling those involved to "chill," "back up," and "stop." (See id. at 6:18-28.) Finally, Doherty Defendants assert payments made to Kongg following the incident were compensation for security services pursuant to a preexisting contract and were unrelated to the alleged assault, and Doherty testified he was not pleased the video went viral. (See id. at 7:4, 9:23-27.)

Thus, Doherty Defendant contends the Plaintiff has failed to demonstrate a substantial probability of prevailing on the punitive damages claim because the evidence does not establish oppression, fraud, or malice by clear and convincing evidence. Alternatively, if the Court grants the motion, Defendants request discovery be limited to the period surrounding the incident and the specific content and revenue at issue, subject to a protective order. (See id. at 11:1-3).

In reply, Plaintiff argues Doherty Defendants improperly ask the Court to disregard Doherty's recorded statements and conduct in favor of his deposition testimony. (See Reply at 1:4-5.) Plaintiff contends the evidence, including Doherty's statements before and after the incident, supports a finding of malice, authorization, and ratification under Civil Code § 3294. (See id. at 1:14-22.) Plaintiff further argues the challenged video evidence is sufficiently authenticated and admissible as a party admission, and Doherty Defendants' objection to the declaration of McKinley Richardson goes to the weight of the evidence rather than its admissibility. (See id. at 2:3-10, 2:26-27.) Finally, Plaintiff maintains Civil Code § 3295(c) authorizes discovery of Doherty Defendants' financial condition and any privacy concerns may be addressed through a protective order. (See id. at 3:12-14.)

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B. Plaintiff is Entitled to Limited Pretrial Discovery of Defendants' Financial Condition Pursuant to a Protective Order

The Court finds Plaintiff has met the burden of demonstrating a substantial probability of prevailing on the punitive damages claim. Civil Code § 3294 defines malice as conduct intended to cause injury or conduct carried on with a willful and conscious disregard of the rights or safety of others. The evidence concerning the incident is sufficient to support a finding Doherty acted with malice under that standard. The Court further notes that, in ruling on Doherty Defendants' Motion for Summary Judgment, it determined video evidence not directly related to the incident was inadmissible. Accordingly, the Court's analysis relies solely on video evidence pertaining to the incident. The Court also concludes Doherty Defendants' hearsay objections lack merit because Doherty's recorded statements are admissible as party admissions. (See Evid. Code § 1220.)

Plaintiff has presented evidence that, throughout the livestream preceding the incident, Doherty repeatedly discussed confronting others and made statements to Kongg suggesting someone should be punched, including statements such as "sock him in the face and then we run." (See Mot. at 4:18-25, 5:1-2.) Plaintiff has further presented evidence that, during the encounter with Plaintiff, Doherty stated, "we're gonna fight" and "alright go, I'm running," after which Kongg punched Plaintiff in the face. (See id. at 5:7-15.) Viewing the evidence as a whole, a reasonable trier of fact could conclude that these statements were not isolated remarks, but rather encouraged or precipitated the conduct that immediately followed.

Defendants contend the statements were jokes, taken out of context, and followed by efforts to deescalate the situation. (See id. at 6:18-28.) However, § 3295(c) does not require Plaintiff conclusively establish punitive liability at this stage. Rather, the Court must determine whether Plaintiff has demonstrated a substantial probability of prevailing on the claim. After weighing the competing showings, the Court finds the temporal proximity between Doherty's statements and the subsequent punch, together with the totality of the circumstances, amply supports a substantial probability a jury could find Doherty knowingly encouraged conduct that created a substantial risk of harm to Plaintiff.

The evidence following the incident further supports Plaintiff's showing. Plaintiff has presented evidence Doherty immediately promoted his social media channel while leaving the scene, reposted footage of the incident, commented on the video's popularity, and later provided Kongg with a monetary payment. (See id. at 5:21-28.) Although Doherty Defendants contend the payment was made pursuant to a preexisting security agreement and Doherty did not intend to celebrate or profit from the incident, the evidence strongly supports an inference Doherty approved of or benefited from the conduct after it occurred. A jury could reasonably view such conduct as ratification of the incident and as further evidence of conscious disregard for the rights and safety of others.

Further, Plaintiff's showing extends to the entity Defendants under Civil Code § 3294(b), which permits punitive damages where an officer, director, or managing agent authorizes or ratifies wrongful conduct. The evidence presented suggests Doherty exercised substantial control over the relevant activities, including the livestream, content decisions, and security arrangements. Accordingly, Plaintiff has demonstrated a substantial probability of establishing punitive damages against the entity Defendants.

On this record, Plaintiff has presented evidence from which a jury could conclude that Defendant Doherty encouraged the conduct before it occurred and ratified it afterward. The Court therefore finds Plaintiff has demonstrated a substantial probability of prevailing on the punitive damages claim. Accordingly, Plaintiff is entitled to pretrial discovery of Defendants' financial condition pursuant to Civil Code § 3295 (c). However, Plaintiff's request for financial documents dating back to January 1, 2016, is overbroad. Although financial discovery is warranted, the scope of discovery should be reasonably tailored to the issues presented in this action. The Court therefore limits the requested discovery to the period beginning one year before the incident, October 28, 2022, through the present. The Court also orders the parties to submit a Proposed Stipulated Protective Order for the Court's approval so that any such discovery can be produced pursuant to it.

V. CONCLUSION

Based on the foregoing, the Court GRANTS Plaintiff's Motion for an Order Permitting Pretrial Discovery of Defendants' Financial Condition Pursuant to Civil Code § 3295. Plaintiff may conduct pretrial discovery of Defendants' financial condition for the period beginning October 28, 2022, through the present pursuant to a Stipulated Protective Order. The parties are to submit a Proposed Stipulated Protective Order for the Court's approval by July 10, 2026.

IT IS SO ORDERED.

DATED: June 26, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] As of today, 12 of these 15 Doe Defendants have been served but none have appeared.